

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zev Carter	Team: Squad #3	CCRB Case #: 201905671	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/26/2019 11:00 PM	Location of Incident: Inside of the 23rd Precinct stationhouse	Precinct: 23	18 Mo. SOL 12/26/2020	EO SOL 8/12/2021	
Date/Time CV Reported Fri, 06/28/2019 10:51 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/28/2019 10:51 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Christine Sanchez	02233	954313	023 PCT
2. LT Jonathan Navarrete	00000	944278	023 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Brianna Mclymont	03537	964647	023 PCT
2. SGT Eliezer Caraballo	03885	917379	023 PCT
3. POF Colleen Willis	07822	964838	023 PCT
4. SGT Jahe Gjidiya	03993	948447	INT CIS
5. LT Lawrence Wang	00000	948283	023 PCT
6. POM Daniel Arevalo	18827	958263	023 PCT
7. POM Steven Sanchez	12221	963742	043 PCT
8. POM Christophe Derco	14560	946917	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A.POF Christine Sanchez	Abuse: Police Officer Christine Sanchez did not obtain medical treatment for § 87(2)(b)	
B.LT Jonathan Navarrete	Abuse: Lieutenant Jonathan Navarrete did not obtain medical treatment for § 87(2)(b)	

Case Summary

On June 28, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone.

On June 26, 2019, at approximately 10:37 p.m., at § 87(2)(b), in Manhattan. Police Officer Sanchez of the 23rd Precinct arrested § 87(2)(b) (#§ 87(2)(b)) for menacing in the second degree and harassment in the second degree. § 87(2)(b) was lodged in the 23rd Precinct stationhouse. During her detainment in the stationhouse, PO Sanchez and Lieutenant Jonathan Navarrete, the desk officer, did not provide § 87(2)(b) with medical attention (**Allegations A and B: Abuse of Authority**, § 87(2)(g) § 87(2)(b) collapsed in front of the stationhouse upon release and was taken by an ambulance to § 87(2)(b) Hospital in Manhattan. No additional arrests were made and no additional summons were issued.

This case contains body-worn camera (BWC) footage from Lieutenant Lawrence Wang, Police Officer Steve Sanchez, PO Sanchez, and Police Officer Daniel Arevalo, all from the 23rd Precinct (**01-08 Board Review**). The investigation also obtained security camera footage from the 23rd Precinct stationhouse (**09-15 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sanchez did not obtain medical treatment for § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Jonathan Navarrete did not obtain medical treatment for § 87(2)(b)

The following facts are undisputed: On June 26, 2019, at approximately 10:37 p.m., PO Sanchez arrested § 87(2)(b) brought her to the 23rd Precinct stationhouse, and lodged her in a holding cell inside. § 87(2)(b) gagged, spit, and possibly vomited in the holding cell room, and that PO Sanchez brought § 87(2)(b) a garbage can in response. § 87(2)(b)'s daughter, § 87(2)(b) picked § 87(2)(b) up at the stationhouse after § 87(2)(b) was released. Upon her release, § 87(2)(b) collapsed in front of the stationhouse and was taken by an ambulance to § 87(2)(b) Hospital in Manhattan.

In a sworn statement, § 87(2)(b) stated that upon her arrest, officers brought her to a room with a fingerprinting station inside of the 23rd Precinct stationhouse and handcuffed her to a bar therein (**16 Board Review**). After she was brought there, § 87(2)(b) told PO Sanchez that she did not feel well and explained that she had a hysterectomy in the past and was in remission from cancer. Finally, she requested to go to the hospital. PO Sanchez ignored § 87(2)(b) and left the room. Sgt. Jahe Gjidiya § 87(2)(b), § 87(2)(e), § 87(2)(f) and brought her to another cell and then back into the first holding cell because the new holding cell was too hot. § 87(2)(b) began to feel as though she needed to vomit. § 87(2)(b) told PO Sanchez that she needed medical attention and PO Sanchez told her that it would delay the issuance of her desk appearance ticket (DAT). § 87(2)(b) had this interaction with PO Sanchez approximately five more times.

§ 87(2)(b) began to spit up blood and alerted PO Sanchez. PO Sanchez told § 87(2)(b) that she was not in fact spitting up blood and told her that the DAT was almost done, but that it might be cancelled if she continued requesting medical attention. The next time that PO Sanchez entered, § 87(2)(b) told her that she was dizzy. Two minutes later, PO Sanchez brought § 87(2)(b) in front of the stationhouse desk, where Lieutenant Jonathan Navarrete issued her the DAT. § 87(2)(b)'s daughter § 87(2)(b) picked § 87(2)(b) up. As § 87(2)(b) was walking out of the stationhouse, she fainted and collapsed at the bottom of a flight of stairs. § 87(2)(b) and officers called an ambulance, which took § 87(2)(b) to § 87(2)(b) Hospital in Manhattan.

In an unsworn statement, § 87(2)(b) stated that she went to pick up § 87(2)(b) at the stationhouse (17 Board Review). § 87(2)(b) stated that § 87(2)(b) has Diabetic Acidosis (which makes her blood acidic) and hypoglycemia. After § 87(2)(b) waited for PO Sanchez for over one hour, PO Sanchez approached § 87(2)(b) and told her that § 87(2)(b) was “fine.” § 87(2)(b) was within § 87(2)(b)’s line of sight as officers brought her from where she was giving a statement back to the holding cell room, and she looked unwell. She was hunched over forwards and bobbing her head back and forth as officers walked with her, and she appeared close to vomiting. Again, PO Sanchez told § 87(2)(b) that § 87(2)(b) was fine. When § 87(2)(b) was released, she dragged her feet while walking out of the holding cell room. Her skin was pale, she had foam around her mouth, was trembling, and looked like she was “folding over.” § 87(2)(b) mumbled to § 87(2)(b) that she needed to go to the hospital. § 87(2)(b) sat on the front steps of the stationhouse, then walked to street level, where she fell between two cars. Thinking that it would be faster than an ambulance, § 87(2)(b) used Uber to call a car to take her and § 87(2)(b) to the hospital. § 87(2)(b) then told an officer in the stationhouse to call for an ambulance. The car that § 87(2)(b) called using Uber came, then left without picking anybody up. An ambulance eventually came to pick § 87(2)(b) up.

Using the 23rd Precinct Command Log and NYPD BADS database, the investigation identified three potential witnesses of this incident who were lodged in the 23rd Precinct at the same time as § 87(2)(b) and § 87(2)(b) and § 87(2)(b). § 87(2)(b) were unavailable to the investigation after contact attempts (33 Board Review). § 87(2)(b) provided a phone statement about an unrelated incident (34 Board Review).

In her CCRB interview, PO Sanchez stated that § 87(2)(b) did not appear to be injured at the site of her arrest (18 Board Review). PO Sanchez had no information about § 87(2)(b)’s medical condition and could not remember any of her interactions with § 87(2)(b). PO Sanchez did not remember what took place while she § 87(2)(b) was in the holding cell waiting to be issued the DAT. PO Sanchez could not hear or see what was going on in the prisoner holding cell room from the 23rd Precinct stationhouse muster room, where she processed the DAT. PO Sanchez did not remember whether § 87(2)(b) looked like she wanted to vomit or spit on the floor in the holding cell room or whether she brought a trash can for § 87(2)(b). PO Sanchez stated that officers “peek [into]” the holding cell room to check on their prisoners and then enter these observations into the Prisoner Holding Pen Roster she but did not remember doing that for § 87(2)(b) in particular. The desk officer never told PO Sanchez that § 87(2)(b) needed medical attention. PO Sanchez denied that § 87(2)(b) told her that she needed medical attention. PO Sanchez denied that she refused to provide § 87(2)(b) with medical attention. PO Sanchez’s memo book makes no mention of § 87(2)(b) requesting or receiving medical attention (21 Board Review).

In his CCRB interview, Sgt. Gjidiija stated that he debriefed § 87(2)(b) inside of the stationhouse (43 Board Review). § 87(2)(b), § 87(2)(e), § 87(2)(f) § 87(2)(b) did not seem to be distressed. He denied that § 87(2)(b) requested medical attention from PO Sanchez or any other officer.

In his CCRB interview, Sergeant Eliezer Caraballo stated that he was the desk officer until 11:10 p.m. on June 26, 2019 (19 Board Review). Sgt. Caraballo had no independent recollection of § 87(2)(b)’s arrest. Sgt. Caraballo did not monitor § 87(2)(b)’s condition while she was in the stationhouse but stated that it was not his responsibility. Sgt. Caraballo did not interact with PO Sanchez or § 87(2)(b) during the incident. He did not request medical attention for § 87(2)(b). Sgt. Caraballo denied that § 87(2)(b) asked him for Medical attention and that he refused to provide her

with medical attention.

In his CCRB interview, Lieutenant Navarrete, who relieved Sgt. Caraballo of his desk officer duties, stated that he had no recollection of this incident or of § 87(2)(b) (20, 42 Board Review). Lieutenant Navarrete stated that his duties as a desk officer include supervising arresting officers while they are processing arrests in the stationhouse. Lieutenant Navarrete stated that it is the responsibility of arresting officers to monitor their prisoners' well-being and report the information to desk officers. The room in the 23rd Precinct stationhouse where officers usually complete arrest paperwork is located approximately 20 feet away from the desk, on the same floor. The room where § 87(2)(b) was held in the stationhouse (as captured in 09 Board Review) is also located on the same floor as the desk. The room is within sight of the desk, but the view is incomplete, and changes based on where an individual stands behind the desk. From Lieutenant Navarrete's workstation at the desk, he can see the bathroom door and the left side of the bench in the holding cell room. Lieutenant Navarrete stated that there is a security camera system in the 23rd Precinct stationhouse desk that he checks occasionally while at his workstation so that he can ensure that none of the prisoners are trying to escape or are in danger of harm. Lieutenant Navarrete does not have a set schedule by which he checks the video feed. Lieutenant Navarrete can change the number of video feeds displayed on the CCTV monitor, which is located at the desk. The size of the video feed changes on the screen depending on how many feeds are displayed at once. The feeds can be as small as two by three inches, or as large as the entire screen. Lieutenant Navarrete did not recall how many video feeds were displayed during the incident or how often he looked at them. He did not know whether he was ever informed that any prisoners needed medical attention while being held in the stationhouse or after being released. He did not remember requesting medical attention for a prisoner. He denied that § 87(2)(b) asked him for Medical attention and that he refused to provide her with medical attention.

PO Sanchez's BWC footage in IA #53 depicts her response to the location of § 87(2)(b)'s arrest (03 Board Review). At 1:00 in the recording, § 87(2)(b) asks PO Sanchez whether she can leave to get her medicine at a pharmacy. PO Sanchez says, "nobody's stopping you." At 7:50 in the recording, § 87(2)(b) leaves the apartment and tells PO Sanchez that she is in remission from cancer. PO Sanchez responds, "I understand that."

PO Steve Sanchez's BWC footage in IA #55 shows his response to the location of § 87(2)(b)'s arrest and the initial stages of her arrest processing (05 Board Review). At 10:50 p.m., or 20:35 in the recording, when the parties are at the stationhouse, § 87(2)(b) says to PO Sanchez and other officers that they did not allow her to take her medicine, and that she is in remission from cancer. PO Sanchez says, "Yeah, I'm trying to get you out of here."

The video in IA #38 comes from security cameras mounted in the 23rd Precinct stationhouse holding cell room between 10:37 p.m. and 11:37 p.m. on June 26, 2019 (12 Board Review). At 14:00 in the recording, PO Arevalo and PO Steven Sanchez bring § 87(2)(b) into the room. PO Sanchez handcuffs § 87(2)(b) to a metal bar on the wall. § 87(2)(b) sits, cries, and fans herself with her hand and shirt. At 11:18 p.m., or 41:15 in the recording, § 87(2)(b) wretches and spits on the floor. She continues until 47:15 in the recording. It is not clear what, if anything, is coming out of her mouth when she wretches. PO Sanchez lets § 87(2)(b) use the bathroom at 11:27 p.m., or 50:10 in the recording, and then leaves. § 87(2)(b) continues to cough, gag, and spit into the corner of the holding cell room.

The video in IA #39 was recorded with the same cameras as the video in IA #38, and captures the holding cell room between 1:15 a.m. and 2:15 a.m. on June 27, 2019 (13 Board Review). § 87(2)(b)

§ 87(2)(b) spits into the corner of the room continuously and, at 15:45 in the recording, points to the floor. PO Sanchez enters the room at 18:45 in the recording and speaks with § 87(2)(b) again. She leaves, then returns at 30:00 in the recording with a garbage can and puts it in front of § 87(2)(b). § 87(2)(b) spits and heaves into it until PO Sanchez walks her out of the room at 46:15 in the recording (approximately 2:01 a.m.). After viewing the footage of PO Sanchez bringing the trash can to § 87(2)(b) Lieutenant Navarrete stated that he did not view the events pictured, and that it was not common practice for arresting officers to bring trash cans to their prisoners.

The video in IA #41 comes from a camera mounted inside of the 23rd Precinct stationhouse lobby between 1:15 a.m. and 2:15 a.m. on June 27, 2019 (**15 Board Review**). At 46:40 in the recording, PO Sanchez leads § 87(2)(b) and § 87(2)(b) out of the lobby and then leaves. Initially, § 87(2)(b) walks without support but leans against the wall and sits down at the top of the stairs upon exiting the building. At 48:15 in the recording, § 87(2)(b) lies down at the top of the stairs. § 87(2)(b) fans § 87(2)(b) with her shirt. The remainder of the video shows officers from the 23rd Precinct, but not PO Sanchez, attending to § 87(2)(b) and bringing her water. An ambulance arrives at the stationhouse at 2:14 a.m., or 59:00 in the recording.

The video in IA #35 comes from a camera mounted near the East 102nd Street entrance of the 23rd Precinct stationhouse between the hours of 1:15 a.m. and 2:15 a.m. on June 27, 2019 (**09 Board Review**). At 51:14 in the recording, § 87(2)(b) and § 87(2)(b) exit the stationhouse on foot and walk to the rear of a vehicle near the street. § 87(2)(b) leans and doubles over on the vehicle, then slumps to the ground at 53:55 in the recording. Officers attend to § 87(2)(b) and stand in her general vicinity until an ambulance arrives at 58:50 in the recording. The footage ends as EMTs are treating § 87(2)(b).

§ 87(2)(b)'s prehospital care report reads that EMS arrived at the 23rd Precinct stationhouse to find her laying on the ground awake and oriented (**24 Board Review**). § 87(2)(b) told EMTs that in the holding cell, she smelled something that gave her a migraine, nausea, and vomiting. § 87(2)(b) was taken to § 87(2)(b) Hospital without incident. § 87(2)(b)'s medical records from § 87(2)(b) Hospital note that she complained of the same symptoms and appeared to be restless and in "mild [to] moderate distress" (**25 Board Review**). Her headache resolved, but her vomiting remained hard to control. § 87(2)(b) was diagnosed with nausea and a migraine. § 87(2)(b) was in the hospital for a total of 10 hours.

The 23rd Precinct Prisoner Holding Pen Roster reads that PO Sanchez lodged § 87(2)(b) at 10:52 p.m. and assessed her condition at 11:00 p.m., 11:30 p.m., 12:01 a.m., 12:30 a.m., 1:00 a.m., and 1:30 a.m. (**23 Board Review**). It also notes that Lieutenant Navarrete inspected the prisoner holding pen at 11:10 p.m. A Medical Treatment of Prisoner Report was not created regarding this incident (**35 Board Review**).

§ 87(2)(b)'s arrest entry in the 23rd Precinct Command Log for June 26, 2019 completed by Sgt. Caraballo lists § 87(2)(b)'s physical and mental condition as apparently normal (**22 Board Review**). The entry also notes that § 87(2)(b) was released with a DAT at 2:00 a.m. The Command Log also notes that Lieutenant Navarrete was present for duty at 11:00 p.m. relieved Sgt. Caraballo as the desk officer from at 11:10 p.m.

The Command Log entry and Prisoner Holding Pen Roster note that § 87(2)(b) was arrested at 12:35 a.m. on June 27, 2019 (**22, 23 Board Review**). The Command Log entry also notes that he experienced shortness of breath. § 87(2)(b)'s online arraignment information notes that he was taken to the hospital at 12:28 a.m. and the Prisoner Holding Pen Roster notes that he was removed at 12:45 a.m. (**23, 36 Board Review**).

Three calls for EMS treatment were made from the 23rd Precinct stationhouse while § 87(2)(b) was lodged there. The first NYPD ICAD #§ 87(2)(b) was created at 12:29 a.m. to report of an individual with head pain (**30 Board Review**). The caller and patient were not identified. EMS was on scene at 12:43 a.m. The patient was removed to § 87(2)(b) Hospital and the event was finalized at 1:39 a.m. The second ICAD #§ 87(2)(b) was created at 12:37 a.m. as a report of a prisoner with chest pains (**31 Board Review**). The event was marked as a duplicate of ICAD #§ 87(2)(b). The third ICAD #§ 87(2)(b) was created at 2:06 a.m. as a report of a light-headed female (**32 Board Review**). The call was made by a sergeant from the 23rd Precinct and the patient is not identified. EMS was on scene at 2:13 a.m. and transported a patient to § 87(2)(b) Hospital. The investigation determined that ICAD #§ 87(2)(b) and #§ 87(2)(b) were related to § 87(2)(b) medical emergency based on the time that he was taken to the hospital and which hospital he was taken to. The investigation also determined that ICAD #§ 87(2)(b) is most likely the call that officers inside of the 23rd Precinct stationhouse made in response to § 87(2)(b)'s final request. The investigation determined that no officer requested EMS for § 87(2)(b) before she was released from police custody.

FDNY Emergency Medical Technicians (EMTs) § 87(2)(b) and § 87(2)(b) arrived at the 23rd Precinct stationhouse to attend to another prisoner's unrelated medical emergency at 12:36 a.m. (**37 Board Review**). In their unsworn statements, EMT § 87(2)(b) and EMT § 87(2)(b) testified that they had no memory of this incident and never saw § 87(2)(b) while inside of the stationhouse (**38, 39 Board Review**).

When a prisoner in custody requires medical treatment, officers are to request an ambulance and remove the prisoner to the hospital directly from the place of arrest, if necessary. NYPD Patrol Guide Procedure 210-04 (**26 Board Review**). Desk officers are to be “responsible for police operations within command during their tour,” “supervise arrest processing officer[s] and monitor arrest processing,” and “supervise subordinate members of [the] command.” NYPD Patrol Guide Procedure 202-14 (**40 Board Review**).

§ 87(2)(b), § 87(2)(g)
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§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and five allegations (**27 Board Review**).
 - § 87(2)(b)
- PO Sanchez has been a member of service for seven years and has been subject to four complaints and four other allegations, none of which were substantiated. § 87(2)(g)
- Lieutenant Navarrete has been a member of service for 13 years and has been subject to two complaints and one other allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was sent to the mediation unit on July 30, 2019 and returned to investigations on December 18, 2019 after the parties did not reach an agreement during their mediation.
- According to the Office of the New York City Comptroller, a Notice of Claim has not been filed regarding this incident (**28 Board Review**).

§ 87(2)(b)

Squad No.: 3

Investigator:	<u>Zev Carter</u> Signature	<u>Investigator Zev Carter</u> Print Title & Name	<u>05/06/2021</u> Date
Squad Leader:	<u>Olga Golub</u> Signature	<u>SL Olga Golub</u> Print Title & Name	<u>05/07/2021</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date